City of Portland Terms of Use for Open Data

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I. Introduction

The City of Portland (“City”) is committed to providing users of its website ("You") with free and open access to information. The City, through the Corporate GIS Group ("CGIS"), is providing the infrastructure and technical support via the PortlandMaps Open Data website to provide You with free access to current and authoritative source-of-record datasets ("Data") for your use and convenience. Data not available on the City of Portland website (Portland.gov) and the PortlandMaps Open Data website can be requested by contacting CGIS at maps@portlandoregon.gov. The following Terms of Use ("Terms") apply.

II. Acceptance of Terms of Use

In order to access or use the Data, You must agree to these Terms. These Terms describe a general agreement between the City and You. By merely using the services of; obtaining information either by downloading, accessing, or using the Data or any Derivative Work provided via the City - PortlandMaps Open Data website; or initiating any applications within the website, You are agreeing to and are bound by these Terms. In which case, You understand and agree that the City will consider your download or use of the Data or a Derivative Work as an acceptance of the Terms.

III. Definitions

"Data" – any datasets, digital media, metadata, documents, or applications that are distributed via the City of Portland website (Portland.gov) and/or PortlandMaps Open Data website - http://portlandmaps.com/opendata.

"Derivative Work" - any type of work that is based on; derived from; or interpreted in any way, or to any extent, from the Data, including without limitation any work that uses any of the Data in a modified form.

"CGIS" – City of Portland Corporate GIS Group as defined in Administrative Rule BTS-5.01. It supports both City customers and clients while serving as a GIS Coordinating Group for the GIS Professionals in City bureaus, providing support and centralized GIS related resources throughout the City.

"PortlandMaps" - The City of Portland Online Mapping and Data exploration environment. The system includes 1) A mapping interface - https://www.portlandmaps.com/; 2) A metadata application - https://www.portlandmaps.com/metadata/; 3) An Open Data portal – https://www.portlandmaps.com/opendata; 4) A series of derivate sites.

"You"- any individual or entity that seeks to use, access, or download the Data.

"Open Data website" – Refers to the City of Portland PortlandMaps Open Data website (http://portlandmaps.com/opendata) and derivative or linked sites where Data are available unless those sites have their own terms of use that expressly supersede this agreement.

IV. Exclusion of Warranty

Every reasonable effort has been made to ensure the accuracy of the Data on this PortlandMaps Open Data website. The City makes no warranty, representation, or guarantee as to the content, usefulness, sequence, accuracy, timeliness, or completeness of any of the Data provided herein. You should not rely on the Data provided for any reason. Your use of this information is at your own risk and/or discretion.

The City and its employees assume no liability or responsibility for any errors, omissions, or inaccuracies in the information provided, regardless of how caused. The City and its employees assume no liability or responsibility for any decisions made or actions taken or not taken by You in reliance upon any information or Data furnished hereunder. For updated information about the Data available, refer to the PortlandMaps Open Data or Metadata websites.

TO THE EXTENT ALLOWED BY APPLICABLE LAW, THE CITY PROVIDES ACCESS TO AND USE OF THE PORTLANDMAPS OPEN DATA WEBSITE AND RELATED DATA “AS IS,” WITHOUT ANY EXPRESS OR IMPLIED WARRANTIES, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NONINFRINGEMENT.

V. Limitation of Liability and Indemnity

To the fullest extent permitted by law, You promise to indemnify, defend, and hold the City and its elected officials, officers, agents, and employees harmless from and against any and all claims, demands, suits, actions, losses, damages, liabilities, costs, and expenses of whatsoever nature (including all attorneys' fees and costs at trial and on appeal) arising out of or resulting from your receipt or use of the Data.

VI. Public Domain Dedication and License (PDDL)

Except where otherwise stated in the file containing such Data or on the page from which such Data is accessed, including its metadata, Data on the PortlandMaps Open Data website are made available under the Public Domain Dedication and License v1.0, the full text of which can be found at: http://www.opendatacommons.org/licenses/pddl/1.0/

VII. General Provisions

A. Availability Not Guaranteed. The City reserves the right at any time and from time to time to modify or discontinue the availability of the Data (or any part thereof) temporarily or permanently, with or without prior notice to You. You agree that the City and its employees will not be liable to You for any modification, suspension, or discontinuance of the Data.

B. The City reserves the right to release the Data under different Terms. For updated information about the Terms, please refer to the PortlandMaps Open Data website.

C. The City may modify these Terms at any time by posting notice on the PortlandMaps Open Data website. Any modification is effective upon posting unless otherwise indicated.

D. Governing Law and Jurisdiction. These Terms shall be construed according to the laws of the State of Oregon without reference to the conflict-of-laws' provisions. Any litigation between the City and You arising under these Terms shall occur, if in the state courts, in the Multnomah County Circuit Court, and, if in the federal courts, in the United States District Court for the District of Oregon.

E. These Terms constitute the entire agreement between the City and You and supersede all prior and contemporaneous proposals, different or additional terms, and oral and written agreements between the City and You on this subject.

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